

SECTION 135 ELECTRICITY ACT — COMPILATION DIGEST · CASES 001–050

Table of Authorities

Every case-law citation across the judgments, de-duplicated and ranked by frequency

All authorities relied on across Cases 001–050, one row per authority, ranked by how many judgments invoked it. Every citation in this set was drawn from the courts’ own reasoning — neither prosecution nor defence argued from case law. Treatment is “relied on” throughout.

CASES	AUTHORITY	PROPOSITION CITED FOR	RELIED ON IN	
36	<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, CrI. A. 1060/2010 (22.12.2010) · Delhi High Court	Non-examination of an independent/public witness is no infirmity where inspecting officials are trustworthy and bear no enmity to the accused.	001	002
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36	<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108 · Delhi High Court	Easiest rebuttal of the theft presumption is production of paid electricity bills; Section 106 Evidence Act places that onus on the consumer.	001	002
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CASES	AUTHORITY	PROPOSITION CITED FOR	RELIED ON IN	
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35	<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569 · Supreme Court	An inspection report prepared by officers in discharge of official duty carries a presumption of regularity; onus on the consumer to rebut by cogent evidence.	001	002
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35	<i>Neeraj Dutt v. State</i> SLP(Crl.) 6497/2020 · Supreme Court	'Shall presume' denotes a compulsory legal presumption the court is bound to draw until the fact is disproved.	001	002
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CASES	AUTHORITY	PROPOSITION CITED FOR	RELIED ON IN	
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35	Hiten P. Dalal v. Bratindranath Banerjee 2001 (6) SCC 16 · Supreme Court	Rebuttal of a statutory presumption need not be conclusive; evidence must make the defence reasonably probable to a prudent man.	001	002
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9	Lokesh Chandela v. State of NCT & Ors. Delhi HC, CrI. A. 479/2011 · Delhi High Court	Both user and owner/registered consumer fall within 'consumer' under Section 2(15); registered consumer answerable for illegal abstraction found at the premises.	004	005
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			021	022
			023	024
			025	
8	State v. N.M.T Joy Immaculate 2004 (5) SCC 729	An irregularity or illegality in the search, seizure or investigation does not by itself vitiate the trial or render the recovered material inadmissible; absent resulting prejudice or failure of justice, the Court may act on the evidence.	030	031
			033	034
			036	037
			038	050
5	Balu Sudam Khalde v. State of Maharashtra 2023 INSC 314 · Supreme Court	Incriminating suggestions put by defence counsel in cross-examination bind the accused and can establish facts such as the factum of, and presence at, the inspection.	001	002
			003	006
			015	

CASES	AUTHORITY	PROPOSITION CITED FOR	RELIED ON IN
4	Sonu @ Amar v. State of Haryana AIR 2017 SC 3441 · Supreme Court	Objection that an electronic record was admitted without a Section 65B certificate goes to the mode of proof and must be raised when the record is tendered; if not taken at trial it cannot be raised later.	001 002 003 005
1	State of Haryana v. Bhagirath AIR 1999 SC 2005; (1999) 5 SCC 96 · Supreme Court	Proof beyond reasonable doubt equates to moral certainty; a reasonable doubt is an honestly entertained doubt on a fair consideration of all evidence.	007
1	Shivaji Sahebrao Bobade v. State of Maharashtra 1974 (1) SCR 489 · Supreme Court	Benefit-of-doubt must not be stretched morbidly to embrace every hunch and hesitancy; social defence matters.	007
1	Municipal Corporation of Delhi v. Ram Kishan Rohatgi AIR 1983 SC 67 · Supreme Court	Reiterates the calibrated reasonable-doubt standard.	007
1	Krishna Gupta v. State Delhi HC	The prosecution must prove the accused's direct nexus with the abstraction; mere presence at or proximity to the spot, without evidence of control or consumption, does not establish theft.	026
1	Tata Power Delhi Distribution Ltd. v. Amit Bansal Delhi HC	Liability under Section 135 attaches only on proof that the accused was the actual consumer/user of the inspected premises.	027
1	Shambhu Nath Mehra v. State of Ajmer AIR 1956 SC 404	Section 106 is an exception confined to facts within the accused's special knowledge and cannot be used to shift the prosecution's burden onto the accused.	027
1	Satye Singh v. State of Uttarakhand (2022) 5 SCC 438	Section 106 of the Evidence Act does not relieve the prosecution of its primary burden of proof; it applies only to facts especially within the accused's knowledge.	027
1	Sarjiwan Singh v. DVB Delhi HC	On the statutory scheme for assessment of unauthorised use under Section 126 and its distinct, non-criminal character.	029
1	Yogesh Nayyar v. TPDDL Delhi (CS No. 821/16)	A civil suit challenging a Section 126 assessment is barred; the remedy lies in the statutory appeal.	029
1	Deepak Santiya v. BSES Yamuna Power Ltd. Delhi (CS No. 2085/21)	The civil court's jurisdiction is ousted by Section 145 in matters the assessing/appellate authority is empowered to decide.	029
1	Joginder Kumar Goyal v. BSES Rajdhani Power Ltd. Delhi HC, W.P.(C) 17658/2022	Unauthorised-use disputes are to be pursued through the Section 127 appellate mechanism, not the civil court.	029
1	B L Kantroo v. BSES Rajdhani Power Ltd. Delhi HC, RFA(OS) No. 12/2008	Reaffirming the bar of Section 145 against civil suits touching a Section 126 assessment.	029
1	Sadhu Singh v. State of Punjab —	Material contradictions in the prosecution's own evidence entitle the accused to the benefit of the doubt.	032

CASES	AUTHORITY	PROPOSITION CITED FOR	RELIED ON IN
1	<i>Kali Ram v. State of Himachal Pradesh</i> (1973) 2 SCC 808	Where two views are reasonably possible on the evidence, the one favouring the accused must be adopted; the presumption of innocence is not lightly displaced.	035
1	<i>Hanumant Govind Nargundkar v. State of M.P.</i> AIR 1952 SC 343	In a case of circumstantial evidence the proved circumstances must form a chain so complete as to exclude every reasonable hypothesis save the guilt of the accused.	035
1	<i>Sujit Biswas v. State of Assam</i> (2013) 12 SCC 406	Suspicion, however grave, cannot take the place of proof; the gap between ‘may be true’ and ‘must be true’ must be bridged by legal evidence.	035
1	<i>State (CBI) v. Mahender Singh Dahiya</i> (2011) 3 SCC 585	The chain of circumstances, including scientific and expert material, must be conclusive and point only to the guilt of the accused.	035
1	<i>Ramesh Harijan v. State of U.P.</i> (2012) 5 SCC 777	Evidence must be appreciated with care; a finding cannot rest on testimony that does not inspire confidence.	035
1	<i>Anoop Joshi v. State</i> Delhi HC	Where public witnesses were available but not joined, the prosecution must meet a higher standard to establish the recovery and inspection.	035
1	<i>Narinder Aggarwal v. BSES Rajdhani Power Ltd.</i> Delhi HC, W.P.(C) 1789/2011	An assessment/speaking order must record the authority’s own independent reasoning; a burnt meter is not necessarily a tampered meter.	042

Compilation digest generated from the per-case summaries of Cases 001–050. It collates the courts’ own reasoning for cross-referencing and is not a substitute for the full judgments.